

Sarva Deo Singh v. State of U.P.

Allahabad High Court · Division Bench · 1 May 2018 · Writ - C No. 15381 of 2018 · **Writ dismissed; petitioner relegated to the Executive Engineer under Supply Code cl. 6.5; recovery to abide by that order.**

HEADNOTE

Recovery of electricity dues on a provisional theft assessment was not quashed in writ where the petition did not show that the assessment had been made final as prescribed. A police final report on the s.135 FIR did not, without more, attract interference. The consumer was left to the Executive Engineer for an assessment order and, for a billing dispute, under cl. 6.5 of the U.P. Electricity Supply Code, 2005. Recovery would abide by the Engineer's order, to be passed within three weeks of a certified copy.

FACTUAL SUMMARY

Sarva Deo Singh filed a writ in the Allahabad High Court seeking to quash recovery of electricity dues alleged to rest on assessed consumption upon theft. An FIR under section 135 of the Electricity Act, 2003 had been lodged; the police later submitted a final report under section 173(2) Cr.P.C. stating that no offence had been committed. He argued that the same sum could not thereafter be recovered as arrears on a provisional assessment. The petition contained no averment that any final assessment order had been passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute

HOLDING

A writ to quash recovery of electricity dues on a provisional theft assessment will not be entertained where the petition does not show that the assessment has been made final as prescribed. The consumer may approach the Executive Engineer for an appropriate assessment order and, for a billing dispute, under clause 6.5 of the U.P. Electricity Supply Code, 2005. Recovery shall abide by the Engineer's order, to be passed within three weeks of presentation of a certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A POLICE FINAL REPORT UNDER SECTION 173(2) CR.P.C. ON A SECTION 135 FIR BARS RECOVERY OF A PROVISIONAL THEFT ASSESSMENT.

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